

24STCV15086 24STCV15086

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-07-17

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Case Number: 24STCV15086 Hearing Date: July 17, 2026 Dept: 732

Superior Court of California

County of Los Angeles

Department 732

GARY MICHAEL GILL.,

Plaintiff,

THOR AUTO, LLC., et al.,

Defendants.

Case No.:

24STCV15086

Hearing Date: July 17, 2026

[TENTATIVE] RULING RE:

Arthur Carvalho Jr. of the firm Lang, Hanigan & Carvalho,
LLP's Motion to be Relieved as Counsel for Plaintiff Gary Michael Gill D.

Code of Civil Procedure § 284 states that

"[t]he attorney in an action or special proceeding may be changed at any time
before or after judgment or final determination" upon either consent of both
client and attorney, or "[u]pon

order of the court, upon the application of either client or attorney, after notice from one to the other.." (Code Civ. Proc. § 284, subd. (b).) California Rule of Court ("CRC") Rule 3.1362 states the requirements for a motion to be relieved as counsel under Code of Civil Procedure § 284. No memorandum is required (CRC Rule 3.1362, subd. (b)), but the motion must be accompanied by (1) a declaration stating why a motion has been brought instead of filing a consent (without compromising attorney-client confidentiality) (CRC Rule 3.1362, subd. (c)); (2) proof of service of the motion (CRC Rule 3.1362, subd. (d); and (3) all hearing dates scheduled in the action or proceeding, including the date of trial. (CRC Rule 3.1362, subd. (e).) "The proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel--Civil (form MC-053) and must be lodged with the court with the moving papers." (Ibid.)

The present motion pertains to Arthur Carvalho of the firm Lang, Hanigan & Carvalho LLP, counsel for Plaintiff Gary Michael Gill ("Plaintiff"). The motion includes a declaration of counsel attesting to a breakdown in communication with their client, and a proof of service of the motion. However, the motion includes no proposed order form on Judicial Council form MC-053 as required by CRC Rule 3.1362, subd. (e).)

Arthur Carvalho Jr. of the firm Lang, Hanigan & Carvalho, LLP's Motion to be Relieved as Counsel for Plaintiff Gary Michael Gill is CONTINUED to permit counsel to fill out and file a proposed order form on Judicial Council Form MC-053.

Dated: July 17, 2026

Hon.
Richard S. Kemalyan

Judge
of the Superior Court